

BOSA SUPPLEMENTAL SUBMISSION – EXHIBITS 6–8

Complainant: [REDACTED]

Respondent: Dr. Michael Thomas, Superintendent, Prior Lake-Savage Area Schools (ISD 719)

Original Filing: Formal Ethics Complaint under Minn. Rule 3512.5200

Supplemental Exhibits: Exhibits 6, 7, and 8

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I. PURPOSE OF SUPPLEMENTAL SUBMISSION

This supplemental submission provides additional evidentiary support for the pending ethics complaint against Superintendent Michael Thomas. The original complaint alleged violations of Minn. Rule 3512.5200, including failures to protect student health and safety, dishonesty or misrepresentation, unauthorized disclosure or mishandling of confidential information, and misrepresentation of records.

Since the original filing, the Complainant has organized additional evidence into Exhibits 6, 7, and 8. These exhibits do not replace the original complaint. They clarify, strengthen, and expand the factual record supporting the existing ethics allegations.

The supplemental evidence supports the following additional or strengthened theories:

1. Superintendent Thomas misrepresented or materially narrowed District Policy 506.1 in a manner inconsistent with the policy's actual text.
2. Superintendent Thomas failed to correct known data-practices and student-safety misrepresentations after repeated notice.
3. Superintendent Thomas allowed statutory and student-safety decisions to be routed through an unlicensed administrator without adequate oversight or review.
4. Superintendent Thomas tolerated or ratified a pattern of administrative conduct that converted safety complaints and data-access requests into procedural barriers.
5. Superintendent Thomas participated in, approved, or failed to correct records and correspondence that materially misrepresented the family's cooperation, the student's enrollment/withdrawal status, and the District's obligations following closure of the Title IX matter.

II. SUPPLEMENTAL EXHIBIT 6 — OBSTRUCTION, CONSTRUCTIVE EXCLUSION, AND SUPPRESSED REPORTING MECHANISMS

A. Relevance to Existing BOSA Standards

- Standard B — Protect Student Health and Safety
- Standard E — Unauthorized Disclosure / Confidential Information
- Standard F — Misrepresentation of Records
- Standard K — Dishonesty, Fraud, or Misrepresentation

B. How Exhibit 6 Strengthens the Complaint

Exhibit 6 strengthens the original complaint by showing that the student's removal from the District was not merely a voluntary withdrawal or ordinary enrollment change. Rather, the record supports an argument that the District's failure to provide safety measures, accessible reporting mechanisms, and accurate records contributed to a constructive exclusion.

The key ethics issue is not simply that the District disagreed with the parent. It is that the District's official records and correspondence allegedly framed the family's conduct in a way that obscured the District's own role in creating barriers to participation.

Exhibit 6 further strengthens allegations that:

- reporting mechanisms were not meaningfully accessible;
- official records minimized contradictory facts;
- the District continued maintaining misleading withdrawal and safety narratives after notice;
- and the District failed to cure reporting and data-access defects after repeated escalation.

Supplemental Count A — Failure to Correct Known Misrepresentations Concerning Student Safety, Withdrawal, and Participation

Superintendent Thomas violated, or permitted violations of, the ethical obligation to act honestly and protect student welfare by allowing District records and communications to continue characterizing the family's conduct as noncooperation or withdrawal while omitting unresolved safety concerns and District-created barriers to participation.

III. SUPPLEMENTAL EXHIBIT 7 — UNLICENSED ADMINISTRATION AND FAILURE OF SUPERINTENDENT OVERSIGHT

A. Relevance to Existing BOSA Standards

- Standard B — Protect Student Health and Safety
- Standard F — Misrepresentation of Records
- Standard K — Dishonesty or Misrepresentation

B. How Exhibit 7 Strengthens the Complaint

Exhibit 7 supports the conclusion that Superintendent Thomas permitted an administrative structure in which Emily Herman operated as the District's central authority for:

- Title IX processing;
- student-safety complaint handling;
- FERPA/MGDPA determinations;
- correction-request denials;
- access-to-records denials;
- procedural deadline enforcement; and
- communications limiting further review.

This matters for BOSA because Superintendent Thomas is the District's chief administrative officer and responsible authority. If the record shows that he knew about the complaints and allowed the same administrator to serve as investigator, decision-maker, data-practices gatekeeper, and procedural barrier, that supports a failure-of-supervision ethics theory.

Supplemental Count B — Failure of Superintendent Oversight Over Delegated Student-Safety and Data-Practices Authority

Superintendent Thomas violated his ethical obligations by allowing a District administrator to function as the de facto legal and statutory authority over student-safety complaints, Title IX participation, and data-practices requests without adequate superintendent oversight, independent review, or correction after repeated notice.

IV. SUPPLEMENTAL EXHIBIT 8 — POLICY 506.1 MISREPRESENTATION AND REFUSAL TO CORRECT

A. Relevance to Existing BOSA Standards

- Standard B — Protect Student Health and Safety
- Standard F — Misrepresentation of Records
- Standard K — Dishonesty, Fraud, or Misrepresentation

B. How Exhibit 8 Strengthens the Complaint

Exhibit 8 directly involves Superintendent Thomas's written response and the District's interpretation of Policy 506.1.

The key new evidence is that Superintendent Thomas allegedly stated that Policy 506.1 "applies only to students" or otherwise refused to apply it to staff or administrator failure to permit, condone, tolerate, investigate, respond to, or remediate bullying.

That statement is materially significant because Policy 506.1 includes language extending obligations to District employees and adults, including provisions that no teacher, administrator, volunteer, contractor, or other employee shall permit, condone, or tolerate bullying.

This creates a stronger BOSA theory because it identifies:

- the specific policy;
- the Superintendent's specific statement;
- the contradictory policy text;
- the parent's request for clarification;
- the District's refusal to clarify; and
- the student-safety consequence of that misrepresentation.

Supplemental Count C — Superintendent Misrepresentation of Policy 506.1 and Failure to Correct After Notice

Superintendent Thomas violated Minn. Rule 3512.5200 by materially misrepresenting District Policy 506.1 in official correspondence responding to student-safety and bullying complaints.

Specifically, the Superintendent represented that Policy 506.1 applied only to students, despite policy language imposing obligations on teachers, administrators, volunteers, contractors, and other District employees not to permit, condone, or tolerate bullying and requiring District action to investigate, respond to, remediate, and discipline where appropriate.

After the Complainant identified the contradiction and requested clarification, the District refused meaningful clarification and treated the request as an impermissible debate. This conduct supports a finding of dishonesty, misrepresentation, failure to protect student safety, and failure to maintain accurate official records.

V. PROPOSED SUPPLEMENTAL COUNTS

Supplemental Count A — Failure to Correct Known Misrepresentations Concerning Student Safety, Withdrawal, and Participation

Supplemental Count B — Failure of Superintendent Oversight Over Delegated Student-Safety and Data-Practices Authority

Supplemental Count C — Misrepresentation of Policy 506.1 and Failure to Correct After Notice

Supplemental Count D — Ratification of Unreviewable Data-Practices Barriers Affecting Student Safety

VI. RECOMMENDED SUPPLEMENTAL RELIEF REQUESTED FROM BOSA

The Complainant respectfully requests that BOSA:

1. Accept Exhibits 6, 7, and 8 as supplemental evidence in support of the pending ethics complaint.

2. Treat the supplemental counts as clarifications and expansions of the original complaint, not as a replacement filing.
3. Investigate whether Superintendent Thomas materially misrepresented Policy 506.1 in official correspondence.
4. Investigate whether Superintendent Thomas failed to correct known inaccurate or misleading District records after receiving notice.
5. Investigate whether Superintendent Thomas failed to supervise delegated authority over student-safety, Title IX, FERPA, and MGDPA decisions.
6. Investigate whether the District's handling of reporting mechanisms, data access, and record correction contributed to a constructive exclusion or failure to protect student health and safety.
7. Determine whether the Superintendent's conduct violated Minn. Rule 3512.5200, including Standards B, E, F, and K.

Respectfully Submitted,

[Redacted Signature]

Itemized Redaction List

Bates/Page	Line	Redaction reason
Sean_OBrien_2026-05-12_BOSA_Supplement 3		Redacted to protect personal privacy.
Sean_OBrien_2026-05-12_BOSA_Supplement 15		Redacted to protect personal privacy.
Sean_OBrien_2026-05-12_BOSA_Supplement 14		Redacted to protect personal privacy.